



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

Re: Disciplinary Case No. 2022-27391 / PODS Case No. C-031829 regarding Police Officer Melanie Pagan-Burgos

Date: September 10, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved an allegation that Police Officer Melanie Pagan-Burgos interfered with an individual's use of a recording device. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, a penalty consisting of Training, as negotiated by CCRB, will be imposed in this matter.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

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February 7, 2025

The Honorable Jessica S. Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Melanie Pagan-Burgos (formerly Melanie Pagan-Merritt) (Tax Reg #946090, DADS #2022-27391)

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with a penalty of Training was agreed upon and signed by all parties on December 30, 2024. Assistant Deputy Commissioner Jeffrey Adler endorsed the negotiated settlement on January 28, 2025.

On August 14, 2021 Officer Pagan-Burgos (then Officer Pagan-Merritt) was working a parking detail at 2568 Frederick Douglass Boulevard in Manhattan. A van belonging to an individual by the name of Aliou Diallo was parked in a place where it was not permitted to be parked. Officer Pagan-Burgos informed Mr. Diallo that he needed to move. In response, Mr. Diallo stated that he was loading stuff into his van. Officer Pagan-Burgos told him that he would get a summons if he didn't move, and did eventually issue a summons to Mr. Diallo. During the incident, Mr. Diallo had his phone out and pointed it towards Officer Pagan-Burgos. Body-worn camera captured Officer Pagan-Burgos slapping the phone out of his hand.

NYPD Administrative Guide Procedure 304-21 states that individuals have a right to lawfully observe and/or record police activity. The right to lawfully observe and/or record police activity extends to individuals in public places such as streets, sidewalks, and parks, as well as private property the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual's own property. Mr. Diallo's attempts to record did not create a dangerous situation for Officer Pagan-Burgos, nor did it impede her from performing her duties. Given this, Officer Pagan-Burgos improperly interfered with Mr. Diallo's attempts to record the incident.

For the charge of interference with a recording device, the disciplinary matrix lists a mitigated penalty of the forfeiture of ten (10) vacation days, a presumptive penalty of the forfeiture of twenty (20) vacation days, and an aggravated penalty of the forfeiture of thirty (30) vacation days.

The negotiated settlement deviates from NYPD disciplinary guidelines as to Interference of a Recording Device for the following reasons:

The bases for this recommendation are Officer Pagan-Burgos's seventeen years of service, her rating of "above standards" by her supervisor, and the fact that Officer Pagan-Burgos was dealing with a potentially volatile situation.

Respectfully submitted,

Brian Arthur

Brian Arthur, Esq.
Deputy Chief Prosecutor
Civilian Complaint Review Board